

OFFICE OF THE SECRETARY

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August 28, 2020

The Honorable Gary J. Ferrari
Judge of the Superior Court
County of Los Angeles
275 Magnolia Avenue
Long Beach, CA 90802

Re: Pedro Torres
CDCR No: F21260
Case No: NA062431
Date of Sentence: March 06, 2006

Dear Honorable Gary J. Ferrari:

The purpose of this letter is to provide the court with the authority to resentence inmate Pedro Torres, F21260 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, subdivision (d)(1) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Torres has received four serious Rules Violation Report (RVR) during his incarceration but has remained RVR free since March 30, 2012. Inmate Torres is currently assigned as a Library Assistant in the Legal Library, as well as voluntarily taking onsite College Courses. Torres is also participating in Self-Help Groups and has received a variety of Laudatory Chronos from these Group Sponsors acknowledging his commitment and dedication to these Self-Awareness and Improvement Groups. Inmate Torres met the standards of the General Educational Development, and received his High School Equivalency Certificate at Calipatria State Prison.

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His assigned Correctional Counselor has relayed that he is pleasant, programs well, and has good interactions with staff.

Having reviewed the enclosed documentation it appears that inmate Torres' sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office